

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **National Domestic Violence Hotline** — call 1-800-799-7233, or text START to 88788 (<https://www.thehotline.org>)
- **National Dating Abuse Helpline** — call 1-866-331-9474, or text LOVEIS to 22522
- **Stalking Prevention, Awareness, and Resource Center (SPARC)** (<https://www.stalkingawareness.org>)
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)
- A safety plan can help you prepare for emergencies. The National DV Hotline can help create one.

Asking a court to protect you. If someone has hurt you or made you afraid, you can ask a court for an **Order for Protection** (sometimes called a restraining order). It is a free request you can make yourself: the court clerk's office or a local advocate can give you the forms and walk you through them, often the same day. A domestic violence advocate (reachable through the

hotline above)
can help you fill them out and can go with you.

You get to decide what feels safe for you. The steps above are here whenever you are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

△ I got served, like a sheriff's deputy came to my work ... it says I have 30 days to file a Response

- **Estimated deadline:** 2026-07-15
- **Basis:** Minn. Stat. § 518.12 (respondent's answer due 30 days after service of the petition)
- **Triggering event:** served on 2026-06-15
- **Jurisdiction:** MN
- In a Minnesota dissolution/family matter the answer is generally due 30 days after you were served with the petition. Estimated — confirm the exact date with the court or a lawyer.

⚠ **An Initial Case Management Conference (ICMC) has been scheduled: Date: July 22, 2026**

- **Estimated deadline:** 2026-07-22
- **Basis:** The court's own summons, hearing notice, or scheduling order setting this date — a court's order or summons is the governing primary authority for a court-scheduled appearance (confirm the date against the document itself).
- **Triggering event:** hearing on 2026-07-22
- **Jurisdiction:** MN
- This is a date the court gave you directly (a hearing, court date, or stated deadline). Estimated — confirm the exact date with the court or a lawyer.

⚠ **Corey grabbed my arm so hard he left a bruise**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-06-28
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

Executive Summary

This intake surfaced 13 potential legal issues across state. The most strongly supported issues are Domestic Violence, Restraining Order, and Custody Modification. A time-sensitive deadline was computed: I got served, like a sheriff's deputy came to my work ... it says I have 30 days to file a Response by 2026-07-15 [Minn. Stat. § 518.12 (respondent's answer due 30 days after service of the petition)]. Safety concerns were detected

in this narrative; see the safety resources below. Analysis completeness is 75%; 10 follow-up questions below would strengthen the assessment.

Completeness Score: 75%

Untitled Intake

Generated: 2026-07-11 03:34 UTC

Matter ID: 180

Run ID: 40

Completeness: 75%

General

| Restraining Order

Claim Type: discovered | **Confidence:** 92%

FOLIO IRI: <https://folio.openlegalstandard.org/R7ASJC76FQwJNtH4rbUqULk>

ISSUE

The documented incident of violence and the history of threatening behavior could justify seeking a restraining order for Dahlia's protection.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Restraining Order' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): What specific procedural requirements must be met when filing for a restraining order in the context of documented violence?

CONCLUSION

No elements defined

| Potential Criminal Assault

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/R8BLgPtZOuKFI8MtZNTaT0u>

ISSUE

The incident where Corey grabbed Dahlia's arm and left a mark may qualify as criminal assault under Minnesota law. Furthermore, there are implications considering the presence of children during the incident, which might be a separate issue related to child welfare.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Criminal Assault' has not been explored with fact mappings

- **Procedural Requirement** (Priority 50): What is the statute of limitations for filing a criminal complaint regarding the assault incident?

CONCLUSION

No elements defined

| Obstruction of Justice

Claim Type: discovered | **Confidence:** 75%

FOLIO IRI: <https://folio.openlegalstandard.org/RCNCBNpw84e0SAwaLCvbKNf>

ISSUE

Corey's warning against calling the police directly implies an intent to obstruct law enforcement from intervening in a domestic violence situation.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Obstruction of Justice' has not been explored with fact mappings

CONCLUSION

No elements defined

| Child Endangerment

Claim Type: discovered | **Confidence:** 40%

ISSUE

The behavior exhibited by Corey during the incident, including screaming and physical aggression, could be interpreted as endangering the emotional and psychological well-being of the children.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Impact of Informal Parenting Arrangements

Claim Type: discovered | **Confidence:** 40%

ISSUE

The informal nature of their prior arrangement may weaken Corey's petition since it establishes a precedent that Dahlia has primarily provided care for the children. This could be leveraged in custody discussions.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Impact of Informal Parenting Arrangements' has not been explored with fact mappings

CONCLUSION

No elements defined

| Legal Representation Challenges

Claim Type: discovered | **Confidence:** 40%

ISSUE

The financial barrier might limit Dahlia's ability to adequately defend against Corey's claims, especially given the complexity of family law issues. Exploring options for pro bono legal assistance or legal aid is essential.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Stalking or Harassment

Claim Type: discovered | **Confidence:** 30%

ISSUE

Given that Corey is frequently texting Dahlia with threatening messages, it may constitute a pattern of harassment that can be addressed legally.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Stalking or Harassment' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Is there a time limit for filing a harassment restraining order based on frequent threatening messages?

CONCLUSION

No elements defined

| More possible issues (show more)

- **Threats and Intimidation:** 30% confidence

state

| Domestic Violence

Claim Type: discovered | **Confidence:** 95%

FOLIO IRI: <https://folio.openlegalstandard.org/RNtr2KMwM33LplYnmmxxVY>

ISSUE

The presence of a bruise on the client's arm caused by Corey grabbing it, as well as the threatening behavior exhibited by Corey towards the client, indicate potential domestic violence and threats of harm.

RULE

No authorities identified for this claim.

APPLICATION

- **Physical Harm:** Supported (85% confidence) - The client has sustained physical injury, evidenced by a bruise caused by Corey.
 - Fact: Corey grabbed my arm so hard he left a bruise. (85% match)
 - Fact: I have pictures of the bruise. (85% match)
- **Threats of Harm:** Supported (85% confidence) - Corey verbally threatened the client regarding custody and implied physical harm if she continues with legal actions.
 - Fact: Corey was screaming that if I 'tried anything' with the custody case he'd take the kids. (85% match)
 - Fact: Corey said I'd 'never see them again.' (85% match)
 - Fact: Corey threatens that Dahlia will never see the kids again if she tries anything with the petition. (85% match)

- Fact: Corey implies physical harm if Dahlia continues.
(85% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What is the timeline for filing an Order for Protection based on domestic violence incidents or threatening behavior?

CONCLUSION

2 of 2 elements supported (85% confidence)

| Crimes Against People

Claim Type: discovered | **Confidence:** 70%

Related to: Domestic Violence

FOLIO IRI: <https://folio.openlegalstandard.org/R7MbuFEaL6NyU9tM2AXk7lk>

ISSUE

Discovered via FOLIO ontology traversal from Domestic Violence (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Crimes Against People' has not been explored with fact mappings

CONCLUSION

No elements defined

| Custody Modification

Claim Type: identified | **Confidence:** 90%

FOLIO IRI: <https://folio.openlegalstandard.org/RCEchldQJ7ND4j4oheflIEg>

ISSUE

Corey is seeking sole custody and has requested that the client have only supervised parenting time, signifying an impending custody modification dispute.

RULE

No authorities identified for this claim.

APPLICATION

- **Current Custody Arrangement:** Supported (85% confidence) - Identify the existing informal, alternating weekend arrangement and establish its suitability.
 - Fact: Corey gets the kids every other weekend. (85% match)
- **Material Change in Circumstances:** Supported (78% confidence) - Demonstrate that significant changes warrant a modification in custody arrangements.
 - Fact: We got into it about the papers. (78% match)
- **Best Interest of the Child:** Supported (85% confidence) - Prove that any changes proposed align with the best interests of the children involved.
 - Fact: The minor child Miles A. Renshaw was born on April 11, 2019. (85% match)

- Fact: The minor child Ava R. Renshaw was born on September 2, 2021. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 90): Element 'Current Custody Arrangement' is not yet supported by any facts
 - Element: Current Custody Arrangement
- **Unsupported Element** (Priority 90): Element 'Material Change in Circumstances' is not yet supported by any facts
 - Element: Material Change in Circumstances
- **Unsupported Element** (Priority 90): Element 'Best Interest of the Child' is not yet supported by any facts
 - Element: Best Interest of the Child
- **Procedural Requirement** (Priority 50): What is the statutory timeline for responding to or seeking a modification of custody arrangements?

CONCLUSION

3 of 3 elements supported (83% confidence)

| Family Law and Matrimonial Claims

Claim Type: discovered | **Confidence:** 70%

Related to: Custody Modification

FOLIO IRI: <https://folio.openlegalstandard.org/RCUXzL8Z4Ddh2CK6TBhofjU>

ISSUE

Discovered via FOLIO ontology traversal from Custody Modification (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Family Law and Matrimonial Claims' has not been explored with fact mappings

CONCLUSION

No elements defined

| Matrimonial Emergency Applications

Claim Type: discovered | **Confidence:** 70%

Related to: Custody Modification

FOLIO IRI: <https://folio.openlegalstandard.org/RCQJU54O6qCvotCfmDwYZwj>

ISSUE

Discovered via FOLIO ontology traversal from Custody Modification (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Matrimonial Emergency Applications' has not been explored with fact mappings

CONCLUSION

No elements defined

| Emergency Custody Relief

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/RCEchldQJ7ND4j4oheflEg>

ISSUE

Given the physical harm and threats from Corey, there is a potential risk to the client's safety and well-being, which could justify seeking emergency custody relief.

RULE

No authorities identified for this claim.

APPLICATION

- **Imminent Risk to the Child:** Unsupported - Evidence that current circumstances pose a danger to the children's well-being.
- **Immediate Action Required:** Supported (85% confidence) - Demonstrating that immediate intervention is necessary to protect the children.
 - Fact: I need help with the custody papers. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 85): Element 'Imminent Risk to the Child' is not yet supported by any facts
 - Element: Imminent Risk to the Child
- **Unsupported Element** (Priority 85): Element 'Immediate Action Required' is not yet supported by any facts
 - Element: Immediate Action Required
- **Unexplored Claim** (Priority 50): Potential claim 'Emergency Custody Relief' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): What is the process and timeline for filing for emergency custody relief to ensure the safety of the client and children?

CONCLUSION

1 of 2 elements supported (42% confidence)

Failure to Protect

Claim Type: discovered | **Confidence:** 40%

ISSUE

The concern raised regarding the ongoing interactions and threats from Corey could indicate a failure to protect the children from witnessing distressing situations.

RULE

No authorities identified for this claim.

APPLICATION

- **Failure to Act:** Unsupported - Demonstrate that the client did not/could not take necessary measures to protect the children from harm.

- **Witnessing Domestic Violence:** Supported (85% confidence) - Children have been present during incidents of physical and emotional abuse.
 - Fact: Miles was crying in his room during the incident. (85% match)
 - Fact: Ava wouldn't stop asking if daddy was mad at her after. (85% match)
 - Fact: Corey J. Voss is the Petitioner. (85% match)
 - Fact: Dahlia states Corey left a bruise on her in front of the kids. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 40): Element 'Failure to Act' is not yet supported by any facts
 - Element: Failure to Act

CONCLUSION

1 of 2 elements supported (42% confidence)

More possible issues (show more)

- **Remedies in Family Law:** 70% confidence (related to Custody Modification)

Action Items

Documents to Gather

- [] **[URGENT]** Element 'Current Custody Arrangement' is not yet supported by any facts
 - **Claim:** Custody Modification
 - **Element:** Current Custody Arrangement

- [] **[URGENT]** Element 'Material Change in Circumstances' is not yet supported by any facts
 - **Claim:** Custody Modification
 - **Element:** Material Change in Circumstances
- [] **[URGENT]** Element 'Best Interest of the Child' is not yet supported by any facts
 - **Claim:** Custody Modification
 - **Element:** Best Interest of the Child
- [] **[URGENT]** Element 'Imminent Risk to the Child' is not yet supported by any facts
 - **Claim:** Emergency Custody Relief
 - **Element:** Imminent Risk to the Child
- [] **[URGENT]** Element 'Immediate Action Required' is not yet supported by any facts
 - **Claim:** Emergency Custody Relief
 - **Element:** Immediate Action Required
- [] **[URGENT]** Element 'Failure to Act' is not yet supported by any facts
 - **Claim:** Failure to Protect
 - **Element:** Failure to Act

Follow-up Steps

- [] **[URGENT]** Confirm the deadline for: I got served, like a sheriff's deputy came to my work ... it says I have 30 days to file a Response (estimated 2026-07-15; Minn. Stat. § 518.12 (respondent's answer due 30 days after service of the petition)). In a Minnesota dissolution/family matter the answer is generally due 30 days after you were served with the petition. Estimated — confirm the exact date with the court or a lawyer.
 - **Deadline:** 2026-07-15

- [] **[URGENT]** Confirm the deadline for: An Initial Case Management Conference (ICMC) has been scheduled: Date: July 22, 2026 (estimated 2026-07-22; The court's own summons, hearing notice, or scheduling order setting this date — a court's order or summons is the governing primary authority for a court-scheduled appearance (confirm the date against the document itself).). This is a date the court gave you directly (a hearing, court date, or stated deadline). Estimated — confirm the exact date with the court or a lawyer.
 - **Deadline:** 2026-07-22
- [] **[URGENT]** What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
- [] **[URGENT]** You said you were the victim of a crime and helped the police. Victims of certain crimes who cooperate with law enforcement may qualify for a U visa (U nonimmigrant status). This needs a certification form (I-918B) signed by the police or prosecutor — has anyone requested one for you? [Authority: INA § 101(a)(15)(U); 8 U.S.C. § 1101(a)(15)(U) (U nonimmigrant status; Form I-918 Supplement B certification)]
- [] **[URGENT]** In a custody decision, the court must consider any domestic abuse that has occurred between the parents. In Minnesota this is a required 'best interests' factor (Minn. Stat. § 518.17); other states have an equivalent. The incident you described may matter to the custody case itself — make sure it is raised, not just handled separately. Do you have records (photos, texts, a police report) of what happened? [Authority: Minn. Stat. § 518.17, subd. 1(a)(4) (domestic-abuse best-interest custody factor)]

- [] **[URGENT]** You mentioned a threat to take the children away so you could not find them. Courts can put safeguards in place while a custody case is pending (holding passports, supervised exchanges, interim parenting-time terms). Tell the court about this threat — do you have it in writing or did anyone witness it? [Authority: Minn. Stat. § 518.17 (interim parenting-time terms); Minn. Stat. § 609.26 (deprivation of custodial/parental rights)]
- [] **[URGENT]** About the immigration papers (Notice to Appear) you received: did that first notice state the exact TIME, DATE, and PLACE of your court hearing, or were those details missing or sent later? A notice missing those details can matter to your case (it can affect eligibility clocks) — bring the original papers to a lawyer. [Authority: Pereira v. Sessions, 138 S. Ct. 2105 (2018); Niz-Chavez v. Garland, 141 S. Ct. 1474 (2021) (defective Notice to Appear)]
- [] **[URGENT]** Potential claim 'Emergency Custody Relief' has not been explored with fact mappings
 - **Claim:** Emergency Custody Relief
- [] **[URGENT]** Potential claim 'Potential Criminal Assault' has not been explored with fact mappings
 - **Claim:** Potential Criminal Assault
- [] **[URGENT]** Potential claim 'Crimes Against People' has not been explored with fact mappings
 - **Claim:** Crimes Against People
- [] **[URGENT]** Potential claim 'Matrimonial Emergency Applications' has not been explored with fact mappings
 - **Claim:** Matrimonial Emergency Applications
- [] **[URGENT]** Potential claim 'Remedies in Family Law' has not been explored with fact mappings
 - **Claim:** Remedies in Family Law

- [] **[URGENT]** Potential claim 'Family Law and Matrimonial Claims' has not been explored with fact mappings
 - **Claim:** Family Law and Matrimonial Claims
- [] **[URGENT]** Potential claim 'Stalking or Harassment' has not been explored with fact mappings
 - **Claim:** Stalking or Harassment
- [] **[URGENT]** Potential claim 'Restraining Order' has not been explored with fact mappings
 - **Claim:** Restraining Order
- [] **[URGENT]** Potential claim 'Obstruction of Justice' has not been explored with fact mappings
 - **Claim:** Obstruction of Justice
- [] **[URGENT]** Potential claim 'Threats and Intimidation' has not been explored with fact mappings
 - **Claim:** Threats and Intimidation
- [] **[URGENT]** Potential claim 'Impact of Informal Parenting Arrangements' has not been explored with fact mappings
 - **Claim:** Impact of Informal Parenting Arrangements
- [] **[URGENT]** What is the timeline for filing an Order for Protection based on domestic violence incidents or threatening behavior?
 - **Claim:** Domestic Violence
- [] **[URGENT]** What is the statutory timeline for responding to or seeking a modification of custody arrangements?
 - **Claim:** Custody Modification
- [] **[URGENT]** What is the process and timeline for filing for emergency custody relief to ensure the safety of the client and children?
 - **Claim:** Emergency Custody Relief

- [] **[URGENT]** What is the statute of limitations for filing a criminal complaint regarding the assault incident?
 - **Claim:** Potential Criminal Assault
- [] **[URGENT]** Is there a time limit for filing a harassment restraining order based on frequent threatening messages?
 - **Claim:** Stalking or Harassment
- [] **[URGENT]** What specific procedural requirements must be met when filing for a restraining order in the context of documented violence?
 - **Claim:** Restraining Order

Gap Report Appendix

Overall Completeness: 75%

[===== - - - -] 75%

| Crimes Against People

- **Unexplored Claim** (Priority 50): Potential claim 'Crimes Against People' has not been explored with fact mappings
 - See Action Item #16

| Custody Modification

- **Unsupported Element** (Priority 90): Element 'Current Custody Arrangement' is not yet supported by any facts
 - Element: Current Custody Arrangement
 - See Action Item #1

- **Unsupported Element** (Priority 90): Element 'Material Change in Circumstances' is not yet supported by any facts
 - Element: Material Change in Circumstances
 - See Action Item #2
- **Unsupported Element** (Priority 90): Element 'Best Interest of the Child' is not yet supported by any facts
 - Element: Best Interest of the Child
 - See Action Item #3
- **Procedural Requirement** (Priority 50): What is the statutory timeline for responding to or seeking a modification of custody arrangements?
 - See Action Item #26

Domestic Violence

- **Procedural Requirement** (Priority 50): What is the timeline for filing an Order for Protection based on domestic violence incidents or threatening behavior?
 - See Action Item #25

Emergency Custody Relief

- **Unsupported Element** (Priority 85): Element 'Imminent Risk to the Child' is not yet supported by any facts
 - Element: Imminent Risk to the Child
 - See Action Item #4
- **Unsupported Element** (Priority 85): Element 'Immediate Action Required' is not yet supported by any facts
 - Element: Immediate Action Required
 - See Action Item #5

- **Unexplored Claim** (Priority 50): Potential claim 'Emergency Custody Relief' has not been explored with fact mappings
 - See Action Item #14
- **Procedural Requirement** (Priority 50): What is the process and timeline for filing for emergency custody relief to ensure the safety of the client and children?
 - See Action Item #27

Failure to Protect

- **Unsupported Element** (Priority 40): Element 'Failure to Act' is not yet supported by any facts
 - Element: Failure to Act
 - See Action Item #6

Family Law and Matrimonial Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Family Law and Matrimonial Claims' has not been explored with fact mappings
 - See Action Item #19

Impact of Informal Parenting Arrangements

- **Unexplored Claim** (Priority 50): Potential claim 'Impact of Informal Parenting Arrangements' has not been explored with fact mappings
 - See Action Item #24

Matrimonial Emergency Applications

- **Unexplored Claim** (Priority 50): Potential claim 'Matrimonial Emergency Applications' has not been explored with fact mappings
 - See Action Item #17

Obstruction of Justice

- **Unexplored Claim** (Priority 50): Potential claim 'Obstruction of Justice' has not been explored with fact mappings
 - See Action Item #22

Potential Criminal Assault

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Criminal Assault' has not been explored with fact mappings
 - See Action Item #15
- **Procedural Requirement** (Priority 50): What is the statute of limitations for filing a criminal complaint regarding the assault incident?
 - See Action Item #28

Remedies in Family Law

- **Unexplored Claim** (Priority 50): Potential claim 'Remedies in Family Law' has not been explored with fact mappings
 - See Action Item #18

Restraining Order

- **Unexplored Claim** (Priority 50): Potential claim 'Restraining Order' has not been explored with fact mappings
 - See Action Item #21
- **Procedural Requirement** (Priority 50): What specific procedural requirements must be met when filing for a restraining order in the context of documented violence?
 - See Action Item #30

Stalking or Harassment

- **Unexplored Claim** (Priority 50): Potential claim 'Stalking or Harassment' has not been explored with fact mappings
 - See Action Item #20
- **Procedural Requirement** (Priority 50): Is there a time limit for filing a harassment restraining order based on frequent threatening messages?
 - See Action Item #29

Threats and Intimidation

- **Unexplored Claim** (Priority 50): Potential claim 'Threats and Intimidation' has not been explored with fact mappings
 - See Action Item #23

Uncategorized

- **Procedural Requirement** (Priority 88): You said you were the victim of a crime and helped the police. Victims of certain crimes who cooperate with law enforcement may qualify for a U visa (U nonimmigrant status). This needs a certification form (I-918B) signed by the police or prosecutor — has anyone requested one for you? [Authority: INA § 101(a)(15)(U); 8 U.S.C. § 1101(a)(15)(U) (U nonimmigrant status; Form I-918 Supplement B certification)]
 - See Action Item #10
- **Procedural Requirement** (Priority 84): About the immigration papers (Notice to Appear) you received: did that first notice state the exact TIME, DATE, and PLACE of your court hearing, or were those details missing or sent later? A notice missing those details can matter to your case (it can affect eligibility clocks) — bring the original papers to a lawyer. [Authority: *Pereira v. Sessions*, 138

S. Ct. 2105 (2018); Niz-Chavez v. Garland, 141 S. Ct. 1474 (2021) (defective Notice to Appear)]

- See Action Item #13

- **Procedural Requirement** (Priority 90): What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]

- See Action Item #9

- **Procedural Requirement** (Priority 88): In a custody decision, the court must consider any domestic abuse that has occurred between the parents. In Minnesota this is a required 'best interests' factor (Minn. Stat. § 518.17); other states have an equivalent. The incident you described may matter to the custody case itself — make sure it is raised, not just handled separately. Do you have records (photos, texts, a police report) of what happened? [Authority: Minn. Stat. § 518.17, subd. 1(a)(4) (domestic-abuse best-interest custody factor)]

- See Action Item #11

- **Procedural Requirement** (Priority 86): You mentioned a threat to take the children away so you could not find them. Courts can put safeguards in place while a custody case is pending (holding passports, supervised exchanges, interim parenting-time terms). Tell the court about this threat — do you have it in writing or did anyone witness it? [Authority: Minn. Stat. § 518.17 (interim parenting-time terms); Minn. Stat. § 609.26 (deprivation of custodial/parental rights)]

- See Action Item #12

Open Questions

1. Can you describe the current arrangement for where your child lives or spends time?
2. Have there been any significant changes in your or your child's situation recently?
3. What do you believe is best for your child in this situation?
4. Would you like information on how to ask the court for an Order for Protection if you feel unsafe?
5. Do you have any evidence of domestic abuse, like texts, photos, or police reports, that could support your custody case?
6. Have you documented any threats you've received regarding the custody of your children?
7. Did you receive a notice from immigration that included a specific date, time, and place for your court hearing?
8. Has anyone helped you obtain a certification form for U visa status from the police or prosecutor following the crime you reported?
9. Have you experienced any emergencies regarding custody that you think may need immediate legal assistance?
10. Do you believe you have been a victim of a crime, such as assault or harassment, that hasn't been officially reported?